

Reena Raj Singh v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 17 February 2022 · WRIT - C No. 737 of 2022
· **Writ disposed; Rs.24,789 computation grievance left to Clause 6.5**

HEADNOTE

Opposite parties Nos. 2 and 3 produced a computation chart offering an excess adjustable amount of Rs.24,789. The writ was disposed of with liberty to the petitioner, if still aggrieved, to represent to the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. Any such representation is to be decided expeditiously, preferably within one month of filing. The correctness of the computation was not examined.

FACTUAL SUMMARY

Reena Raj Singh filed a writ petition before the Lucknow Bench against the State of Uttar Pradesh, through the Principal Secretary (Energy), and two other opposite parties. At the hearing, counsel for opposite parties Nos. 2 and 3 produced a computation chart. On that chart the excess adjustable amount, the benefit of which was offered to the petitioner, was only Rs.24,789. A copy of the chart was handed over to the petitioner's counsel in court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

computation grievance left to competent authority

HOLDING

Having regard to the computation chart of opposite parties Nos. 2 and 3, on which the excess adjustable amount offered to the petitioner is Rs.24,789, the petitioner if still aggrieved may ventilate that grievance before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. A representation, if filed, is to be considered and decided expeditiously, preferably within one month of filing, and the writ petition is disposed of on that basis. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was disposed of once the computation chart was placed before the Court, leaving any remaining grievance over the excess adjustable amount of Rs.24,789 to the competent authority under Clause 6.5. ¶ 1

6.5-representation-as-appropriate-remedy The Court treated a representation under Clause 6.5 as the means of challenging the computation, and directed that a representation, if filed, be decided expeditiously, preferably within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXCESS ADJUSTABLE AMOUNT OF RS.24,789 SHOWN IN THE COMPUTATION CHART IS CORRECT

Left to the competent authority under Clause 6.5 if the petitioner files a representation. ¶ 1